



WOMENITE

(Registered Under the Society Registration Act. XXI of 1860)

Womenite

Policy on Prevention of Sexual Harassment (PoSH) and Guidelines for Redressal

Womenite ("**Organization**") is committed to provide a safe work environment based on respect for individual dignity.

Sexual Harassment refers to any unwelcome and unlawful sexually determined behaviour directly or by implication when submission to such conduct creates an unpleasant and offensive work place for any employee or is made a condition for a person's employment.

Womenite will pro-actively build awareness on this issue and offer counselling services with regard to sexual attitudes and behaviour. Womenite has a sensitive and strong redressal process in cases of sexual harassment in accordance with the law.

1. Womenite prohibits sexual harassment at the work place and any individual found guilty of such behaviour will be liable for action under this Policy. Wherever sexual harassment occurs, Womenite will act to stop the harassment, prevent its recurrence, and take appropriate action against those responsible.
2. Sexual Harassment means any behaviour which constitutes **unwelcome** sexual conduct, unwelcome acts of physical intimacy, unwelcome oral/textual requests for sexual favours, graphic representations of a sexual nature, other visual, verbal or physical conduct of a sexual nature and includes all conduct in the detailed list of behaviours provided in the **Annexure** to this document.
3. Encouragement or assistance (abetment) in an act of sexual harassment will be deemed to be sexual harassment.
4. The Policy and Guidelines apply to all members (employees, volunteers, fellows and retainers) of Womenite, all persons working for Womenite but not directly employed by Womenite and all persons who participate in programmes of Womenite. It is also applicable to consultants, part-time, temporary, contractual or casual

Womenite aims to create an equal society through education, love and empowerment.

WOMENITE

(Registered Under the Society Registration Act. XXI of 1860)

employees, trainees, persons on probation while on an engagement with Womenite as well as any other third party.

5. The Policy and Guidelines apply to all instances of sexual harassment occurring
 - a. on the premises of Womenite, irrespective of the persons involved
 - b. between or among members of Womenite, irrespective of the location
 - c. at the extended workplace e.g. while travelling, at the place of stay and work or venue of work-related events
6. Womenite will strive to prevent any acts of this nature by communicating with all members through communication material and comprehensive awareness workshops.
7. Womenite has constituted a Prevention of Sexual Harassment (PoSH) Committee in accordance with the law.
8. The members of the PoSH Committee for Womenite are:
 - a. Rajani Wagh
 - b. Priya Gupta
 - c. Harshit Gupta
9. This Committee will ensure proper and effective implementation of the PoSH Policy. Each location will have a regional representative, who along with certain central PoSH Committee members will form the location level committee for inquiring into complaints in that region. Each member will also have central responsibilities in addition to region-specific responsibilities.
10. Members of the Committee shall hold office for a period of three years. The Member- Secretary will be responsible to call meetings and, together with the Chairperson, identify the investigating team and help conclude the investigations. S/he will also be responsible for maintaining records.

Womenite aims to create an equal society through education, love and empowerment.

WOMENITE

(Registered Under the Society Registration Act. XXI of 1860)

11. The Committee will:

- a.** Spread awareness about the Policy within Womenite on a regular basis by conducting sensitization workshops for all members
- b.** Counsel employees on issues of sexual harassment
- c.** Be authorised to receive and conduct inquiries on all complaints in the manner prescribed in this Policy
- d.** Be responsible for assisting victims of sexual harassment and eyewitnesses through the process of inquiry
- e.** Recommend necessary action to protect victims/eye-witnesses who have reported any instance of retaliation or threats of retaliation
- f.** Ensure that all discussions with the PoSH Committee are kept confidential

12. Any person to whom this Policy is applicable who believes that she or he has been a victim of sexual harassment may submit a complaint by email to hr@womenite.com or directly contact any of the PoSH Committee members who will render all reasonable assistance to the victim to make the complaint in writing.

13. It may be helpful to make a written record of the date, time and nature of the incident/(s) and the names of any witnesses along with any document or other evidence in support of the complaint.

14. The complaint must be registered within a period of three months from the date of the incident or, in the case of a series of incidents, within a period of three months from the date of the last incident.

15. The PoSH Committee may extend this time limit for another three months for reasons given in writing, if it is satisfied that circumstances prevented the complainant from filing within the stipulated period.

16. Any person may approach the members of the PoSH Committee to seek information on sexual harassment or to clarify whether or not a particular incident is one of sexual harassment.

17. An eyewitness to any conduct amounting to or implying sexual harassment may also report the incident in the manner prescribed under this Policy

18. Anonymous complaints will not be accepted

Womenite aims to create an equal society through education, love and empowerment.

WOMENITE

(Registered Under the Society Registration Act. XXI of 1860)

19. On receiving a complaint, the Committee may do the following:

- a. Conciliation:** At the request of the complainant, the Committee will attempt to settle the matter between the complainant and the respondent through conciliation prior to initiating an inquiry. If this is successful, the Committee will forward the settlement arrived at to the Chief People Officer for implementation and provide copies of the settlement to the parties involved. If there is any complaint by the complainant that the terms and conditions of the settlement arrived at have not been complied with by the respondent, an inquiry will be instituted.
- b. Inquiry:** An inquiry into a complaint of sexual harassment will be completed within a period of 90 days from the date of receipt of the complaint. An inquiry into a complaint will be conducted in a way that ensures confidentiality. In general, the PoSH Committee will adhere to the principles of natural justice including:
 - giving reasonable opportunity to both parties to be heard as well as taking on record any relevant documents
 - upon completion of inquiry providing a report of its findings to both parties
 - taking all other actions necessary to ensure a fair and equal process including ensuring that neither complainant nor supporting witnesses nor any other person cooperating with the inquiry process is victimized or discriminated in any way
- c. Actions pending Inquiry:** During the pendency of an inquiry the PoSH Committee shall have the discretion to make appropriate interim recommendations upon a written request by the complainant to:
 - transfer the complainant or respondent to any other workplace
 - grant leave to the complainant of up to three months provided this shall be in addition to the leave s/he would normally be entitled to
 - grant such other relief to the complainant as may be necessary
- d. Retaliation:** Any kind of retaliation or threat of retaliation by either of the parties concerned is forbidden and strong action will be initiated if such incidents occur.

Womenite aims to create an equal society through education, love and empowerment.

WOMENITE

(Registered Under the Society Registration Act. XXI of 1860)

e. Completion of Inquiry: The Committee on completion of an inquiry shall provide a report of its findings within 10 days from the date of completion to the Chief People Officer. Necessary action based on the report must be taken within 60 days of the receipt of the report.

20. Penalties: Depending on the gravity of the situation and offence, the PoSH Committee, in consultation with the Chief People Officer, may impose one or more of the following illustrative penalties on any individual/s found guilty of sexual harassment.

- a.** Written apology
- b.** Warning or reprimand
- c.** Transfer to another location of work (with or without a change in role)
- d.** Suspension/Dismissal
- e.** Where an alleged instance amounts to a cognizable offence under the Indian Penal Code or any other applicable law, Womenite may, in addition to imposing one or more of the above penalties, initiate appropriate proceedings according to law

21. If any of the parties to the complaint is/are dissatisfied with actions taken for resolution of a complaint, they can file an appeal with the Chief People Officer within 90 calendar days of the communication of decision to the parties.

22. Consensual Relationships: This section applies to consensual relationships (romantic or sexual) between two members in a reporting relationship.

Womenite recognises and respects members' rights to privacy and has no stance on consensual relationships among peers. However, in the case of members who have a direct reporting relationship (e.g. Supervisor and Member, Workshop Facilitator and Participant), the person in an organizational position of power has the ability to influence the life and career of the other.

If such a consensual relationship exists, the members must report it to the Chief People Officer. If the members concerned express an intention to continue in their relationship, one of them must choose to move to a different role so that the reporting relationship ceases to exist.

Womenite aims to create an equal society through education, love and empowerment.



WOMENITE

(Registered Under the Society Registration Act. XXI of 1860)

23. Womenite will review these guidelines from time to time and communicate changes if any.

Womenite aims to create an equal society through education, love and empowerment.

(M) : +91-9717973658/ Email : hr@womenite.com / Website: www.womenite.com

WOMENITE

(Registered Under the Society Registration Act. XXI of 1860)

ANNEXURE

Sexual Harassment means any behaviour which constitutes **unwelcome** sexual conduct including the following:

1. Leering
2. Comments about people's bodies/clothes
3. Sexist and insulting graffiti
4. Sexist cartoons, jokes and songs
5. Obscene phone calls/text messages/emails
6. Lewd and threatening letters/emails/text messages
7. Verbal abuse or comments that put down people because of their sex
8. Inappropriate gifts
9. Repeated sexual invitations when the person invited has refused/ignored similar invitations
10. Material that is sexual in nature, sexist, sexually explicit and is displayed in the workplace, circulated, or put in someone's workspace or belongings, or on a computer or fax machine or on the Internet or any other public display system or public place on the premises of Womenite
11. Graphic descriptions of pornography
12. Displaying pornography on the premises of Womenite
13. Touching and hugging
14. Pressing or rubbing up against a victim
15. Brushing against sexual parts of the body
16. Insisting that individuals wear revealing clothing
17. Sexually explicit gestures
18. Indecent exposure
19. Sexual sneak attacks
20. Subtle or overt pressure for sexual favours
21. Soliciting or demanding sexual services
22. Sexual or physical contact, such as slapping, kissing or touching
23. Coerced sexual intercourse
24. Sexual assault
25. Any act which constitutes an offence under the Indian Penal Code, 1860 or any other prevalent law

Womenite aims to create an equal society through education, love and empowerment.



WOMENITE

(Registered Under the Society Registration Act. XXI of 1860)

The following acts would also be considered as acts of sexual harassment if the same occur in relation to or in connection with any act of sexual harassment described in this annexure:

1. Implied or explicit promise of preferential treatment in employment
2. Implied or explicit threat of detrimental treatment in employment
3. Implied or explicit threat about present or future employment
4. Interference in work or creating an intimidating or offensive or hostile work environment
5. Humiliating treatment likely to affect health or safety

Womenite aims to create an equal society through education, love and empowerment.